

trial.

**Ruling**

Plaintiffs' Motion to Continue the trial is **granted**. The current trial date of April 6, 2026 is **vacated**. The Parties are ordered to appear at the hearing on March 11, 2026 for a trial setting conference trailing the cross-motions for leave to file amended complaint and cross-complaint.

**8. 9:00 AM CASE NUMBER: C23-02436**  
**CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI**  
**\*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**  
**FILED BY: WANKEN, DENNIS**  
**\*TENTATIVE RULING:\***

Plaintiffs Dennis and Eleni Wanken's motion for leave to file a first amended complaint is **granted**. The Wankens may file and serve their FAC by March 25, 2026.

The Wankens filed this case on September 27, 2023, seeking payment from Droubi for half the cost of repaving their shared private roadway, which is part of an express easement. In the original complaint, the Wankens sued for (1) breach of written contract, (2) breach of contract implied in fact and (3) unjust enrichment. In this motion, the Wankens seek leave to add two new causes of action: trespass and contribution based upon Civil Code section 845(b). The contribution claim is also seeking half the cost of repaving their shared driveway. The trespass claim adds new facts, alleging that Droubi and her family and guests walk around the express easement on a footpath and use Wankens' property without permission.

The Wankens' attorney explains that his law firm was brought into this case on November 14, 2025, and upon their review of the case, the law firm promptly found two additional causes of action to include in their case. They attempted to meet and confer on amending the complaint on November 24 and December 3, 2025, but Droubi did not agree to the amendments. (Sloboda dec. ¶¶ 5-7.) The Wankens filed this motion for leave to amend on December 5, 2025. The Wankens filed an attorney declaration that explains the changes to the complaint and attaches a redline version of the proposed amendments. The Wankens' motion is compliant with California Rules of Court, rule 3.1324.

There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is " 'inexcusable delay and probable prejudice to the opposing party' ... [Citation.]" (*Ibid*; see also, *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 (even assuming there is unreasonable delay, "it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.")).

Droubi opposes this motion, arguing that these amendments should have been much earlier in the case. It appears that the facts supporting the proposed amendments could have been included

in the original complaint or soon thereafter and it is unclear why the amendment was not sought earlier. The Wankens' current attorneys acted quickly in seeking to amend the complaint, but there is still unreasonable delay from September 2023 through November 2025.

Unreasonable delay alone is not enough to deny a motion for leave to amend. In order to deny leave to amend, there must also be prejudice. The contribution claim includes a new legal theory, but is based upon the same essential facts as the original complaint. Further, while the trespassing claim is new to the complaint, a similar issue regarding the footpath was already included in Droubi's cross-complaint where she alleges that the Wankens are interfering with her use of the path. Thus, the amendments are likely to result in little, if any, additional discovery, and they do not drastically change the scope of this case. Further, while trial is currently set to begin in April 2026, the Court has granted the Wankens' trial continuance and thus, there will be sufficient time to engage in motion practice related to these new claims. The Court finds that there is no prejudice to Droubi in allowing these amendments.

**9. 9:00 AM CASE NUMBER: C23-02436**  
**CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI**  
**\*HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT**  
**FILED BY: DROUBI, NAHLA**  
**\*TENTATIVE RULING:\***

Cross-Complainant Nahla Droubi's motion for leave to file a second amended cross-complaint is **continued** to April 8, 2026.

The Wankens opposed Droubi's motion for leave to amend, arguing that the motion does not comply with California Rules of Court, rule 3.1324(a)(2)-(3) and (b). Droubi's motion does not specify each proposed amendment by listing the page, paragraph, and line number where the additional allegations are located or providing a redline version of the complaint, which provides the same information. (Rule 3.1324(a)(3).) Further, Droubi's motion did not include the required declaration explaining (1) the effect of the proposed amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Rule 3.1324(b).) Compliance with these rules is mandatory.

Droubi shall file and serve a redlined version of the proposed second amended complaint showing all amendments and a declaration compliant with rule 3.1324(b) by March 18, 2025. The Wankens may file and serve an opposition by March 25, 2026. Droubi may file a reply by April 1, 2026.

**10. 9:00 AM CASE NUMBER: C23-02445**  
**CASE NAME: DARSHAN SINGH VS. RUDOLPH SANDOVAL**  
**\*HEARING ON MOTION IN RE: PROTECTIVE ORDER**  
**FILED BY: SANDOVAL, RUDOLPH VALENTINO**  
**\*TENTATIVE RULING:\***

This hearing was **vacated** at the Case Management Conference on February 26, 2026 due to the